

COMMERCIAL LEASE AGREEMENT BETWEEN PINNACLE CONSULTING LLP AND SYNERGY ENTERPRISES LLP

Between: **Pinnacle Consulting LLP** (Lessor) and **Synergy Enterprises LLP** (Lessee)

Effective Date: 2024-02-11

Termination Date: 2029-02-11

Governing Law: the laws of the State of New York

1. Term

This Agreement shall commence on the Effective Date, 2024-02-11, and shall continue until 2029-02-11, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

2. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,84,00,000 (Rupees One crore, eighty-four lakh Only). This limitation does not apply to obligations arising from Clause 1 or indemnification obligations.

3. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

4. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Noida. The award shall be final and binding.

5. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this lease Agreement dated 2024-02-11 between Pinnacle Consulting LLP and Synergy Enterprises LLP. "Services" means the services described in Clause 3. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

6. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

7. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

8. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

9. Scope of Services

Pinnacle Consulting LLP shall provide to Synergy Enterprises LLP the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

10. Termination

Either Party may terminate this Agreement by giving 60 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Synergy Enterprises LLP shall pay for all Services rendered up to the date of termination.

11. Subcontracting

Pinnacle Consulting LLP shall not subcontract any material part of the Services without the prior written consent of Synergy Enterprises LLP. Where subcontracting is permitted, Pinnacle Consulting LLP shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 5 and Clause 8.

12. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

13. Indemnification

Pinnacle Consulting LLP shall indemnify, defend, and hold harmless Synergy and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Pinnacle Consulting LLP's breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

14. Insurance

Pinnacle Consulting LLP shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,84,00,000 (Rupees One crore, eighty-four lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,84,00,000 (Rupees One crore, eighty-four lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Pinnacle Consulting LLP shall provide evidence of such insurance upon request.

IN WITNESS WHEREOF

Lessor

Pinnacle Consulting LLP

Signature: _____

Name: _____

Title: _____

Date: _____

Lessee

Synergy Enterprises LLP

Signature: _____

Name: _____

Title: _____

Date: _____